

Minnesota Digital Due Process Act

Legislative Hearing Package

Sponsor Briefing Memorandum

Prepared for Members of the Minnesota Legislature

Executive Summary

The Minnesota Digital Due Process Act establishes a simple procedural safeguard:

No individual may be subjected to a material adverse governmental action solely on the basis of an automated prediction, algorithmic determination, or artificial intelligence output.

The Act does not prohibit the use of artificial intelligence.

The Act does not prohibit predictive analytics.

The Act does not prohibit fraud detection, law enforcement analytics, risk assessment tools, or automated decision-support systems.

Instead, the Act requires that consequential governmental decisions remain subject to meaningful human review and independent supporting evidence.

The proposal preserves innovation while ensuring that constitutional accountability remains human.

Why This Legislation Is Necessary

Government agencies increasingly rely upon:

- Artificial intelligence
- Machine learning systems
- Automated risk scores
- Predictive analytics
- Algorithmic classifications
- Large-scale data analysis

These technologies can improve efficiency and effectiveness.

However, they also create the possibility that individuals may face governmental consequences based upon statistical prediction rather than individualized evidence.

The central question before the Legislature is not whether these technologies should be used.

The question is whether constitutional safeguards should continue to apply when they are used.

This Act answers that question in the affirmative.

What Problem Does This Solve?

Historically, governmental decisions have been made by accountable public officials.

Increasingly, agencies rely upon automated systems to:

- Flag potential fraud
- Assess risk
- Prioritize investigations
- Determine eligibility
- Recommend enforcement actions

Without clear standards, there is a risk that automated outputs may become de facto decision-makers.

The Act prevents that outcome by ensuring that humans remain accountable for consequential governmental decisions.

Constitutional Basis

The proposal is grounded in existing constitutional principles.

Due Process

Government should not deprive individuals of rights, benefits, opportunities, or property without fair procedures.

Human review helps preserve procedural fairness.

Equal Protection

Individuals should receive individualized consideration rather than being reduced solely to algorithmic classifications.

Accountability

Public officials remain responsible for governmental actions taken in the name of the State.

Technology may assist decision-making.

It should not replace accountability.

What The Act Does Not Do

The Act does not:

- Ban artificial intelligence
- Restrict technological innovation
- Prevent fraud detection
- Prevent predictive analytics
- Require disclosure of proprietary source code
- Restrict lawful investigations
- Create ownership rights in data
- Create expansive new liabilities

The Act establishes procedural safeguards only.

Anticipated Questions

Does this hinder law enforcement?

No.

Law enforcement agencies may continue using predictive tools, intelligence systems, analytical platforms, and investigative technologies.

The Act simply provides that legal consequences should not arise solely from automated predictions.

Investigative leads remain permissible.

Automated accusations do not become evidence.

Does this create additional bureaucracy?

Minimal.

Most agencies already maintain review procedures for consequential determinations.

The Act primarily clarifies minimum standards.

Does this prevent agencies from using AI?

No.

The Act assumes AI will continue to be used.

Its purpose is to ensure that AI remains an advisory tool rather than the sole basis for governmental action.

Does this require disclosure of trade secrets?

No.

The legislation specifically protects proprietary information, protected investigative techniques, and legally exempt records.

Public Policy Benefits

The Act promotes:

- Government transparency
- Public trust
- Human accountability
- Constitutional compliance
- Responsible innovation

It provides agencies with clear standards while protecting citizens from unintended consequences arising from automated systems.

Conclusion

The Minnesota Digital Due Process Act does not seek to regulate technology itself.

It seeks to preserve a foundational principle of democratic governance:

When government acts against a citizen, a human being should remain accountable for that decision.

Technology may assist.

Constitutional responsibility must remain human.